

9.—(1) The prerogative right to grant Droits of Admiralty or Droits of the Crown or any part or proportion of any such Droits respectively to officers or other persons seizing or taking the same, shall cease to be exercisable in respect of any war in which His Majesty may become engaged after the commencement of this Act.

Abolition of future prize money, and of prize bounty.

(2) The prerogative right to grant prize bounty shall cease to be exercisable, and accordingly sections forty-two to forty-four of the Naval Prize Act, 1864 (which relate to such bounty) are hereby repealed.

10.—(1) This Act may be cited as the Prize Act, 1948.

Short title and definition.

(2) In this Act the expression “ the late war ” means any war in which His Majesty has been engaged at any time between the third day of September, nineteen hundred and thirty-nine, and the second day of September, nineteen hundred and forty-five.

TABLE OF STATUTES REFERRED TO
IN THIS ACT.

Short Title.	Session and Chapter.
Naval Agency and Distribution Act, 1864	27 & 28 Vict. c. 24.
Naval Prize Act, 1864	27 & 28 Vict. c. 25.
Colonial Courts of Admiralty Act, 1890 ...	53 & 54 Vict. c. 27.
Statute of Westminster, 1931	22 & 23 Geo. 5. c. 4.

CHAPTER 10

An Act to authorise the increase of the number of judges of the Court of Session to fifteen, and to amend the law relating to the sessions of that Court, to the appointment of the Lord Ordinary in Exchequer causes and to the office of sheriff substitute..

[16th December 1948.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subject as hereinafter provided, the number of judges of the Court of Session shall be increased from thirteen to fifteen :

Number of judges of Court of Session.

Provided that when the number of those judges for the time being in office is not less than thirteen, no vacancy among them shall be filled unless the Secretary of State, with the concurrence of the Treasury, is satisfied that the state of business in the Court requires that the vacancy should be filled.

17 & 18 Vict.
c. 94.
23 & 24 Geo. 5.
c. 41.

(2) The amounts by which the sums charged on the Consolidated Fund of the United Kingdom under the Public Revenue and Consolidated Fund Charges Act, 1854, and the sums payable under the Administration of Justice (Scotland) Act, 1933, out of moneys provided by Parliament, are increased by reason of the provisions of the last foregoing subsection shall be respectively defrayed out of that Fund and out of such moneys.

Sessions of
the Court.

2. The ordinary sessions of the Court of Session shall be such as may be fixed by Act of Sederunt.

Right of
appointing
Lord Ordinary
in Exchequer
Causes.
19 & 20 Vict.
c. 56.

3. The right of appointing to the office of Lord Ordinary in Exchequer causes under section two of the Exchequer Court (Scotland) Act, 1856, shall be transferred to and vested in the Court of Session and shall be exercisable by Act of Sederunt.

Qualification
for office of
sheriff substi-
tute, etc.

4.—(1) No person shall be appointed to the office of salaried sheriff substitute in Scotland unless he is, and has been for at least five years, legally qualified. For the purposes of this subsection, a person shall be legally qualified if he is an advocate or a solicitor.

(2) In the event of a vacancy occurring in the office of any salaried sheriff substitute in Scotland it shall be lawful for the Secretary of State to appoint a person qualified to fill the office to act ad interim as such sheriff substitute until the vacancy shall be filled, and any person so appointed shall receive, out of moneys provided by Parliament, such remuneration as the Treasury, on the recommendation of the Secretary of State, may determine.

Citation and
repeal.

5.—(1) This Act may be cited as the Administration of Justice (Scotland) Act, 1948.

(2) The enactments specified in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Section 5.

SCHEDULE.

ENACTMENTS REPEALED.

Session and chapter.	Short title.	Extent of repeal.
11 Geo. 4. & 1 Will. 4. c. 69.	The Court of Session Act, 1830.	Section twenty.
7 Edw. 7. c. 51 ...	The Sheriff Courts (Scotland) Act, 1907.	Section twelve so far as relating to the office of salaried sheriff substitute.
23 & 24 Geo. 5. c. 41	The Administration of Justice (Scotland) Act, 1933.	In section four, subsection (1).